

24STCV06672 24STCV06672

County: los-angeles
Division: Civil Law and Motion
Department: 506
Hearing date: 2026-06-25
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Case Number: 24STCV06672 Hearing Date: June 25, 2026 Dept: 506

SUPERIOR
COURT OF THE STATE OF CALIFORNIA

FOR THE
COUNTY OF LOS ANGELES - CENTRAL DISTRICT

JOSEPH NEJMAN,

Plaintiff,

vs.

LORI ABRAMOWITZ, AS TRUSTEE FOR THE GROSS
FAMILY CHILDREN'S TRUST II, et al.,

Defendants.

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CASE NO.: 24STCV06672

[TENTATIVE] ORDER DENYING MOTION TO VACATE
ORDER

Dept. 506

8:30 a.m.

June 25, 2026

On March 18, 2024, Plaintiff filed this action against
Defendants Lori Abramowitz (as Trustee for the Gross Family Children's Trust II),
Maxx Abramowitz, and Adam Levin.[1]

On May 8, 2026, Defendants filed an amended motion to
vacate the Court's March 27, 2026 Minute Order granting Plaintiff's discovery motions
and imposing \$12,350 in monetary sanctions.

DISCUSSION

Defendants argue that the March 27 Order must be vacated
because Maxx and Adam were not served with the motions to compel discovery, the
notice of hearing, and Plaintiff's Notice of Non-Opposition. (Motion at p. 6.) All Defendants were not served with the March
27, 2026 Order. (Ibid.)

A. Relevant Timeline

On December 9, 2025, the Court granted Attorney Reynolds's

unopposed motions to be relieved as counsel for Defendants. The Court also scheduled an April 6, 2026 Order to Show Cause Re: Striking the Answer of Lori as Trustee and Entering Its Default for Failure to Retain New Legal Representation and an Order to Show Cause Re: Dismissal of Cross-Complainant.

On December 15, 2025, Attorney Reynolds filed a Proof of Service of the Court's orders on each Defendant at their last-known addresses. Lori was served by mail at 6812 Willow Wood Dr., Apt. 802; Maxx was served by mail at 6812 Willow Wood Dr., Apt. 802; and Adam was served by mail at 2 Catamaran St., Apt. 1. Each Defendant was also served by mail "c/o Oreva Capital" at 10990 Wilshire Boulevard, 18th Floor and by email.

On December 24, 2025, Plaintiff filed six discovery motions (two for each Defendant). The Proofs of Service reflect service by mail at each Defendant's address that was provided by Attorney Reynolds.

On March 27, 2026, the Court granted Plaintiff's six unopposed motions to compel discovery responses and imposed sanctions in the amount of \$12,350.00.

On April 6, 2026, the day of the OSCs, Defendants filed Substitutions of Counsel, substituting their self-representation for new representation by Attorney Peake. The same day, for unreleased reasons, the Court continued the OSCs.

On May 4, 2026, Defendants filed a motion to vacate the March 27, 2026 Order, and on May 8, 2026, they filed an amended motion.

B. It Is Undisputed That Lori's Address Is Correct.

Although Lori contends that she "was not served with and never received any of Plaintiff's December 24, 2025 motions to compel discovery responses or requests for monetary sanctions" and was not served with notice of the hearing, Defendants admit that Lori's address is correct. (Lori Decl. ¶¶ 4-5, 8-14; see Motion at pp. 3-4.) Accordingly, Plaintiff's service of the motions by mail at that address was proper.

Only Maxx and Adam argue that the addresses provided

by Attorney Reynolds are “stale” and unconfirmed, rendering any service ineffective. (See Motion at p. 5.)

C. There Is No Due Process Problem as to Lori as Trustee.

Defendants argue that the March 27 Order should be vacated on due process grounds because Lori, as a trustee, could not appear pro se and could not oppose the discovery motions. (Motion at pp. 10-11.)

The Court’s December 9, 2025 minute order relieving counsel explained that Lori, as trustee, would need to retain new counsel. The signed Form MC-053 order also warned that a trustee “may not in most cases represent yourself,” and a trustee “SHOULD IMMEDIATELY SEEK LEGAL ADVICE REGARDING LEGAL REPRESENTATION. Failure to retain an attorney may lead to an order striking the pleadings or to the entry of a default judgment.” Lori does not deny receiving notice of these orders.

Lori had approximately three and a half months to retain new counsel for the trust before the March 24, 2026 hearing on the discovery motions and the Court’s March 27 Order. She did not do so.

D. Maxx and Adam Were Served at Their “Current” Addresses Under the Rules of Court.

Defendants observe that the order granting counsel’s withdrawal mandates, “If the client’s current address is known, service on the client must hereafter be made at that address unless otherwise ordered in item 13. If the current address is not known, service must be made according to Code of Civil Procedure section 1011 (b) and rule 3.252 of the California Rules of Court.” (Motion at pp. 4-5; see Reply at pp. 2-3.)

Under those service rules, “[i]f the party’s residence is not known, any attempt of service pursuant to this subdivision may be made by delivering the notice or papers to the clerk of the court, for that party.” (Code Civ. Proc., § 1011, subd. (b)(3).) The notice or papers “must be enclosed in an envelope addressed to the party in care of the clerk or the judge,” with the following information included on the back of the envelope: “Service is being made under Code of Civil Procedure section 1011(b) on a party whose residence address is unknown.” (California Rules of Court, rule 3.252.)

As Plaintiff notes, the distinction between “current”

and “last known” addresses is set forth in the Rules of Court for motions to be relieved as counsel. (Motion at p. 7.) As used in at context, “‘current’ means that the address was confirmed within 30 days before the filing of the motion to be relieved.” (California Rules of Court, rule 3.1362(d).)

Attorney Reynolds’s declarations in support of his Motions to Be Relieved as Counsel (filed on October 28, 2025) explained his efforts to confirm Defendants’ contact information and locate a current address. He conducted Westlaw Public Records searches that were “re-run and updated on 10/23/25,” and he was “unable to locate more current addresses or phone numbers after making reasonable efforts to do so within 30 days before filing of the motion.” He also stated that he would (1) serve Defendants by email “at the same email addresses they have used to correspond with counsel over the course of counsel’s representation of Defendants,” (2) serve them by mail at their business address at Oreva Capital, and (3) notify Defendants about the motion via telephone. Thus, through his declaration, Attorney Reynolds did confirm that Defendants’ “last known” addresses were their “current” addresses under the Rules of Court, “confirmed within 30 days before the filing of the motion to be relieved.”[2] (California Rules of Court, rule 3.1362(d).)

After counsel’s thorough service of the December 9, 2025 orders relieving counsel (with the information also communicated by mail at their business address, by email, and by telephone), no Defendant denies receiving notice of the December 9, 2025 order. Furthermore, all Defendants filed Substitutions of Counsel on the date of the OSCs that were set via that order, indicating that they were aware of the deadline for Lori retaining counsel as trustee—again demonstrating that Defendants received notice of the December 9, 2025 orders.

Thereafter, after counsel’s withdrawal, it was Defendants’ duty to inform the Court and all parties of changes to their contact information. (California Rules of Court, rule 2.200.) “The ‘person to be served’ has the burden of notifying the court of any change of address, and failure so to do does not enable him to claim improper notice.” (Bethlahmy v. Customcraft Industries, Inc. (1961) 192 Cal.App.2d 308, 310.)

In sum, Attorney Reynolds provided Defendants’ contact information when he sought to be relieved as counsel. Defendants received notice of the order granting that motion. Defendants did not update their contact information any time thereafter. Plaintiff served his discovery motions on Defendants at their mailing addresses

that were on file in this action.

Defendants have not demonstrated that they are entitled to their requested relief.

E. Defendants Are Granted a Thirty-Day Extension to Comply with the March 27 Order.

Defendants observe that the Court Clerk incorrectly served the March 27 Order on Defendants' former counsel via electronic service. (Motion at pp. 9-10.) Defendants were not individually served by mail. Accordingly, because Defendants did not receive proper notice of the March 27 Order, the Court will extend those deadlines.

Defendants are ordered to provide supplemental responses to (1) Form Interrogatory Nos. 9.2, 15.1, and 17.1; and (2) Requests for Production Nos. 1, 2, and 4 within thirty days of this order. Defendants are also ordered to pay sanctions in the sum of \$12,350.00, jointly and severally, to Plaintiff by within thirty days of this order.

CONCLUSION

The motion to vacate is DENIED.

Defendants are ordered to comply with the Court's March 27, 2026 Order within thirty days.

Moving party to give notice.

Parties who intend to submit on this tentative must send an email to the Court at indicating intention to submit. If all parties in the case submit on the tentative ruling, no appearances before the Court are required unless a companion hearing (for example, a Case Management Conference) is also on calendar.

Dated this 25th day of June 2026

Hon. Thomas D. Long

Judge of the Superior
Court

[1] “The parties and relevant individuals share a last name. For clarity, convenience, and in order to avoid confusion, we refer to them by their first names and intend no disrespect.” (Cruz v. Superior Court (2004) 120 Cal.App.4th 175, 188, fn. 13.)

[2] Adam declares that he has resided at a different address since approximately May 2025. (Adam Decl. ¶ 3.) Maxx declares that he has resided at a different address since approximately December 1, 2025. (Maxx Decl. ¶ 3.) Yet, these were the last verified addresses known by Attorney Reynolds, and he also informed them of his withdrawal via email and telephone.